

		Based on the foregoing, the Court DENIES Sun Mar's motion to quash the deposition of Mr. Oxford, and denies the requested protective order. <i>Plaintiffs to give notice.</i>
103	Berger vs. Mission Viejo Animal Services, 25-01502673	<i>Off-calendar.</i>
104	Hoshour vs. Montgomery, 24-01392447	Plaintiffs David Guy Hoshour and Wensun Chen seek an order compelling Defendant Annelise Montgomery to provide further responses to Requests for Admission, Set One, served on Defendant on October 11, 2025. Initially, this Motion was filed January 8, 2026 by Plaintiffs David Hoshour and Wensun Chen, who are in pro per. (ROA 65.) Notably, in support of the Motion is a declaration by "Mark J. Kizer" who is "assisting Plaintiffs DAVID GUY HOSHOUR and WENSUN CHEN in this matter." (Declaration of Kizer para.1.) While Mr. Kizer indicates he has "personal knowledge of the facts set forth herein and could competently testify thereto", he fails to indicate how, or whether he is an attorney. Where responses have been served but are deemed deficient by the requesting party (e.g., because of objections or evasive responses), that party may move for an order compelling a further response. [CCP § 2033.290.] Importantly, no further response can be ordered to an RFA that has been unqualifiedly denied, even if the facts involved are unquestionably true. "[A] court [cannot] force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions" by denying them. [<i>Holguin v. Sup.Ct. (Hoage)</i> (1972) 22 Cal.App.3d 812, 820.] Here, on October 11, 2025 Plaintiffs served RFAs, Set 1. (Decl. Kizer¶2.) Defendant did not serve responses until December 16, 2025

		(Defendant's Opp). The Separate Statement, filed concurrently with the motion, establishes that for many RFAs Defendant responded "unknown". Defendant also denied several RFAs. (See Separate Statement, ROA 56) On December 17, 2025, Plaintiff mailed a meet and confer letter as required by CCP § 2033.290(b)(1). In response to this Motion, Defendant Montgomery merely states that she served responses on December 16, 2025. Therefore, Motion is GRANTED as to RFAs 20, 22, 32, 40, 42, and 43 wherein Defendant evasively responded "unknown". To the extent this motion is directed to responses where Defendant equivocally denied or admitted an RFA, the motion is DENIED pursuant to the authority set forth above. Plaintiff's request for sanctions is DENIED as not having been properly noticed. ["A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." Code Civ. Proc., § 2023.040.] Furthermore, in pro per parties cannot recover discovery sanctions. [See <i>Argaman v. Ratan</i> (1999) 73 Cal.App.4th 1173, 1179; <i>Kravitz v. Sup.Ct. (Milner)</i> (2001) 91 Cal.App.4th 1015, 1021.] <i>Plaintiff to give notice.</i>
105	Godoy vs. Godoy, 24-01413474	<i>Off-Calendar.</i>
106	McKesson Medical Surgical, Inc. vs. Gordian Medical, Inc., 25-01500196	Specially Appearing Defendant Gordian Medical, Inc. ("Defendant") moves to quash service of summons and dismiss the action against it for lack of personal jurisdiction. "Due process permits the exercise of personal jurisdiction over a nonresident defendant in the following four situations: (1) where the defendant is domiciled in the forum state when the lawsuit is commenced; (2) where the defendant is personally served with process while he or she is physically present